

TENTATIVE RULING:

This matter is scheduled for hearing on **July 9, 2026, at 9:00 am** in this department.

18. 9:00 AM CASE NUMBER: N25-2191

CASE NAME: CLAIM OF:ISA OGULISA OGUL

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Ibrahim Ogul filed on November 5, 2025 a Petition for Approval of Compromise of Minor Isa Ogul's ("Minor") Claim Against Natalie Konz and Monterey Pines Apartments ("Petition"). The Court orders appearance of counsel and the Guardian Ad Litem. Zoom is acceptable.

Background

On September 18, 2023, Minor Ogul was bitten by a dog. He suffered puncture wounds to his left eyebrow, below his left eye, and a major puncture wound to his left cheek. He was treated and discharged. Petitioner avers that Minor has recovered completely.

At this time, Defendant Monterey Pines Apartments has offered settlement in the amount of \$60,000. There are the following deductions: \$9,216.00 for medical expenses (after deductions), \$15,000 in attorneys' fees, and \$3,181.28 in costs. The remainder, \$32,602.72 remains to be paid for the benefit of the Minor. The Court could not locate a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court has questions to confirm that the Minor's injuries are fully recovered. The medical records provided indicated the possibility of surgery in the future, as well as ongoing lingering issues relating to the trauma of the experience. Additionally, it is not clear whether this is a settlement of the entire matter (including Natalie Konz). If these issues are resolved to the Court's satisfaction, then the compromise will be approved. Finally, the Court needs to ensure that the Guardian Ad Litem understands that (1) if subsequent events show that the injuries have not fully healed, he cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when he turns 18, unless the court orders otherwise.

19. 9:00 AM CASE NUMBER: N25-2361

CASE NAME: CLAIM OF:SARAH AVINA

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Griselda Perez filed on December 4, 2025 Petition for Approval of Compromise of Minor Sarah Avina's ("Minor") Claim Against Tashiana Lashawantae Edgley-Johnson and Monica Griffon ("Petition"). The Court orders appearance of counsel and the Guardian Ad Litem. Zoom is acceptable.

Background

On January 24, 2024, Minor Avina and Petitioner were in a car accident. Minor Avina suffered a concussion, neck sprain, and soft tissue shoulder injuries. It appears she received treatment for all of her injuries. Petitioner avers that Minor has recovered completely.

At this time, Defendants' insurer, State Farm Insurance has offered settlement in the amount of \$22,415. The Petition states that \$8,319.40 of that shall go to Petitioner on her own behalf. There are no deductions for medical expenses, attorneys' fees, or costs. The remainder, \$14,096 is to be paid for the benefit of the Minor.¹ Counsel checked box 17(d) that the attorney "did become concerned with this matter, directly or indirectly, at the instance of a party against whom the claim is asserted or a party's insurance carrier," but did not explain the circumstances, as is required in Attachment 17d.

Ruling

After careful examination of the Petition and proposed orders, the Court has questions: (1) what is the basis for the apportionment of damages? (2) What are the circumstances to be explained in Attachment 17d? If these issues are resolved to the Court's satisfaction, then the compromise will be approved. Finally, the Court needs to ensure that the Guardian Ad Litem understands that (1) if subsequent events show that the injuries have not fully healed, she cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when she turns 18, unless the court orders otherwise.

20. 9:00 AM CASE NUMBER: N25-2363

CASE NAME: CLAIM OF: NEVAEH DEL TORRO

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Summary

¹ The Petition lists it at \$14,096, but if \$8,319.40 is to be deducted from \$22,415.00, it is actually \$14,095.60.